

Amendment No. 1 to HB1816

Farmer
Signature of Sponsor

AMEND Senate Bill No. 2533

House Bill No. 1816*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 33-11-103, is amended by adding the following as new subsections:

(t) Notwithstanding another law to the contrary, the council shall allocate funds held in the opioid abatement fund as follows:

(1) From amounts that are not required to be disbursed to the counties pursuant to subsection (p), it is the legislative intent that the council shall allocate:

(A) Twelve million three hundred thousand dollars (\$12,300,000) to the bureau of TennCare to be distributed in the amount of four million one hundred thousand dollars (\$4,100,000) per year in fiscal years 2026-2027, 2027-2028, and 2028-2029 for the purpose of supplementing the per member per month adult mobile crisis payments paid to the nonprofit community behavioral health provider contracted entities that provide mobile crisis services across this state for TennCare enrollees; and

(B) Twenty-five million dollars (\$25,000,000) to the department of mental health and substance abuse services in fiscal year 2026-2027 for the purpose of funding crisis, residential, and inpatient treatment services for uninsured individuals with co-occurring mental health and substance use disorders. Funds must be used to expand access, capacity, and stabilization services for such population; and

(2) For amounts paid into the opioid abatement fund on or after July 1, 2026, and not allocated pursuant to subdivision (t)(1), ten percent (10%) of the funds available to the council after accounting for proceeds required to be disbursed to the counties pursuant to subsection (p) must be allocated to the department of mental health and substance abuse services for deposit into a separate account within the opioid abatement fund. Amounts in this account must be used exclusively for the purposes set forth in subdivision (t)(1)(B), including crisis, residential, and inpatient treatment services for uninsured individuals with co-occurring mental health and substance use disorders. Disbursements to this account must be made at the time county disbursements are made pursuant to subsection (p).

(u) Funds allocated pursuant to subsection (t) must supplement and not supplant existing state appropriations for behavioral health and substance use disorder services.

(v) The allocations made pursuant to subsection (t) must not reduce, offset, or otherwise affect the distribution of proceeds to counties or municipalities from opioid settlements.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.